



Notification Waiver Determination

Sonnel Hospitality Group – Peakhurst Inn Hotel

Acquisition	Sonnel Hospitality Group (Sonnel Hospitality) proposes to acquire the freehold going concern of the Peakhurst Inn Hotel at 705 Forest Road, Peakhurst NSW 2210 (trading as The Peakhurst), comprising the land, hotel building, NSW Hotel Liquor Licence, business, goodwill, plant, equipment and stock, as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition is structured as two concurrent asset purchases: freehold/land by Meerlen Pty Limited as trustee of Vic on the Park Trust, and business by Nelmeer Ashfield Pty Ltd as trustee of Nelmeer Ashfield Trading Trust. Meerlen Pty Limited as trustee of Vic on the Park Trust applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 July 2026

Parties to the Acquisition	The acquirer, Sonnel Hospitality (formerly Nelson Meers Hotel Group), is a privately-owned, community-driven hospitality group that owns and operates 19 hotels/pubs in Sydney. Its venues offer on-premises sale of alcohol, takeaway packaged liquor, food, gaming, TAB/Keno and accommodation. The target, The Peakhurst, is a full-service community hotel located at 705 Forest Road, Peakhurst NSW 2210, in the Georges River local government area of metropolitan Sydney. It is owned and operated by entities associated with JDA Collective. Both parties supply hotel/hospitality services including the sale of alcohol for on-premises consumption, takeaway/package liquor (via attached bottle shops), food and beverage, gaming (electronic gaming machines), TAB/Keno wagering, short-term accommodation, and function/entertainment services. Sonnel Hospitality currently operates two hotels within 5 km of The Peakhurst: Hurstville Ritz Hotel (350 Forest Road, Hurstville NSW 2220) and Wiley Park Hotel (67 King Georges Road, Wiley Park NSW). Wiley Park Hotel has an on-site bottle shop.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between Sonnel Hospitality and The Peakhurst, based on number of premises, in the supply of accommodation, dining, functions, gaming and on-premises liquor services at pub-style venues in the local area surrounding The Peakhurst b. there are many alternative suppliers of accommodation, dining, functions, gaming and on-premises liquor services in the local area surrounding The Peakhurst. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act